

This motion was filed with insufficient notice. All moving papers and supporting papers shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Notice is extended when service is by electronic means, as it was here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) As defendant filed his moving papers on May 15, 2026 for a hearing initially scheduled for June 2, 2026, defendant provided a mere 11 court days' notice. This court's decision to continue the hearing to June 23, 2026 for scheduling purposes does not cure this issue and the motion is procedurally deficient.

Defendant's request for judicial notice is granted as to Exhibit B in its entirety and Exhibit F to the extent the document is a filed court record. However, the court does not take judicial notice of the arguments or information declared therein. The request for judicial notice is denied as to Exhibits A and E, because defendant did not provide a copy of these documents with its request. The request for judicial notice is denied as to Exhibits C and D because they are not judicially noticeable documents. (Evid. Code, §§ 451, 452.)

Substantively, the motion lacks merit. The same arguments defendant raises today have already been considered by this court for prior motions and by the Appellate Division. While defendant acknowledges in his briefing that the Appellate Division affirmed his appeal, and the Third District Court of Appeal declined extraordinary relief, and the California Supreme Court dismissed review of the matter, defendant does not acknowledge that this means the June 8, 2023 judgment is final. The only relief available at this stage of the proceedings is pursuant to Code of Civil Procedure section 473(d), as the court may at any time set aside a void judgment. However, that defendant disagrees with the decisions of this court and the Appellate division does not constitute a void judgment. Defendant fails to show the judgment is void. The court also observes the instant motion lacks any legal basis or justification and is frivolous as defined in Code of Civil Procedure section 128.5(b)(2). The motion is denied.

Defendant is on notice the court intends to summarily deny any similar future motions as the judgment is long since final and all possible avenues for review have been exhausted.

2. M-CV-0093201 All In Credit Union v. Paletta, Jason Raymond

The motion is dropped from calendar as no moving papers were filed with the court.

3. M-CV-0093623 Sunbelt Rentals v. Timothy P Hansen

Defendants' motion to set aside default

On January 12, 2026, defendants Timothy P. Hansen, individually and as trustee of the Timothy P. Hansen and Cheryl L. Hansen revocable trust dated 08/10/2021; Cheryl L. Hansen, individually and as trustee of the Timothy P. Hansen and Cheryl L. Hansen revocable trust dated 08/10/2021 filed a motion to set aside the default entered on November 19, 2025, pursuant to Code of Civil Procedure sections Code of Civil Procedure § 473(b).